

Stereo. HCJDA 38
JUDGMENT SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No. 46941 of 2021

Humair Yousaf

Vs.

Station House Officer etc.

JUDGMENT

Date of hearing	17.06.2022
For the Petitioner:	M/s Kh. Haris Ahmad and Muhammad Zubair Khalid, Advocates.
For Respondents No.1 & 2:	Mr. Mukhtar Ahmad Ranjha, Assistant Advocate General.
For Respondent No.3:	M/s Tariq Kamal Qazi and Sharjeel Adnan Sheikh, Advocates.

Tariq Saleem Sheikh, J:- This petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the “Constitution”), is directed against order dated 15.7.2021 passed by the Ex-officio Justice of Peace, Lahore.

The facts

2. On 8.7.2021 Respondent No.3 [Hayat Kimya Pakistan (Private) Limited] moved an application under section 22-A of the Code of Criminal Procedure, 1898 (hereinafter referred to as “Cr.P.C.” or the “Code”), before Respondent No.4 (Ex-officio Justice of Peace) stating that it had appointed Apex Distribution and Marketing Services (Private) Limited (hereinafter referred to as “Apex”) as its non-exclusive distributor for the sale and distribution of its products in terms of Agreement dated 15.5.2019. In due course of business a sum of Rs.15.00 million became outstanding against Apex whereupon the Petitioner (Humair Yousaf) and Mrs. Tabassum Yousaf delivered three cheques (Cheque Nos. 97479699, 1688258316 and CA0053594927) for Rs.5.00 million each to Respondent No.3 to liquidate its liability but they were dishonoured on presentation. The application did not mention the precise

date of those cheques. Respondent No.3 contended that the Petitioner and Mrs. Tabassum Yousaf had dishonestly given it bad cheques and thus committed a cognizable offence for which they were liable to be prosecuted. Accordingly, it prayed for a direction to the Respondent SHO for registration of a criminal case against them. Respondent No.4 accepted that application vide Order dated 15.7.2021 (the “Impugned Order”). Hence, this petition.

3. It is pertinent to point out that Cheque No. 97479699 was drawn on the Petitioner’s personal account with the Summit Bank Limited while Cheque Nos. CA0053594927 and 1688258316 were drawn on Apex’s two corporate accounts maintained with Faysal Bank Limited and MCB Bank Limited respectively and issued under the hand of Mrs. Tabassum Yousaf.

The submissions

4. The counsel for the Petitioner, Kh. Haris Ahmad, Advocate, contended that the Impugned Order was illegal and without jurisdiction for two reasons. First, the law laid down by the Hon’ble Supreme Court of Pakistan in ***Younas Abbas and others v. Additional Sessions Judge, Chakwal, and others*** (PLD 2016 SC 581) and this Court in ***Abid Ali alias Imran and another v. City Police Officer, Faisalabad, and 6 others*** (PLD 2021 Lahore 274) mandates that where the Officer In-charge of a police station refuses to register FIR the aggrieved person must approach his superior officers in the hierarchy before making an application under section 22-A(6) Cr.P.C. to the Ex-officio Justice of Peace (“JOP”). In the present case Respondent No.3 moved Respondent No.4 directly so that application was not competent. Secondly, on 8.7.2021 when the application of Respondent No.3 came up for hearing before Respondent No.4 for the first time he directed Respondents No.1 & 2 (the police officials) to file their report/comments and simultaneously ordered service of the “proposed accused” for the next date of hearing. On 15.7.2021 Respondent No.4 proceeded to pass the Impugned Order although neither the Petitioner (and co-accused Tabassum Yousaf) was served nor the police had submitted the requisite report. In these circumstances, Mr. Ahmad contended, Respondent No.4 could not decide the matter.

5. Mr. Ahmad assailed the Impugned Order on merits also on numerous grounds. His first contention was that Cheque Nos. 97479699, 1688258316 and CA0053594927 were given to Respondent No.3 on different dates as security in terms of Distribution Agreement dated 15.5.2019. Section 489-F PPC was inapplicable to security cheques. Secondly, Respondent No.3 had procured the Impugned Order through fraud, forgery and misrepresentation. He submitted that Respondent No.3 deliberately concealed the date of receipt of the cheques in its application before Respondent No.4 and attempted to suggest that they were issued on the date mentioned on them, i.e. 4.5.2021. It was not so. According to the learned counsel, there was documentary evidence that they were delivered to Respondent No.3 on different occasions and were undated as they were not meant for encashment. On 23.6.2021 Respondent No.3 presented the cheques although it was fully aware of the fact that a dispute in respect thereof had arisen and Apex had served a notice for arbitration upon it and instructed the bankers to stop payment against two of the said instruments. Cheque No. CA0053594927 related to an account which was closed on 25.1.2020 so such instruction was not required for it. Mr. Ahmad contended that Respondent No.3 had no authority to fill up the date on the cheques because no liability had accrued against Apex. Thirdly, “dishonest intention” was the foundational element of section 489-F PPC but there was nothing on record to suggest that the Petitioner and Mrs. Tabassum Yousaf harboured such intention when they handed over the said cheques to Respondent No.3. Lastly, the dispute between the parties was of civil nature and they had filed cross suits which were pending. The application moved by Respondent No.3 under section 22-A(6) Cr.P.C. was *mala fide* as it wanted to mount pressure on the Petitioner by implicating him in a criminal case.

6. Mr. Tariq Kamal Qazi, Advocate, who represented Respondent No.3, controverted the above contentions. He contended that the Impugned Order was lawful and did not suffer from any jurisdictional defect. As regards the *Younas Abbas* case, he submitted that it was being grossly misread and misconstrued. Even a learned Single Judge of this Court misunderstood it in ***Abid Ali alias Imran and another v. City***

Police Officer, Faisalabad, and 6 others (PLD 2021 Lahore 274). According to him, there was nothing in *Younas Abbas case* to suggest that it was mandatory for the aggrieved party to approach senior police officials against the inaction of the Officer In-charge of a police station before moving the JOP under section 22-A Cr.P.C. Mr. Qazi further contended that the Impugned Order could not be quashed on the ground that Respondent No.4 did not await the police report because it was a mere irregularity. Similarly, the fact that he did not hear the Petitioner and co-accused Mrs. Tabassum Yousaf was of no legal consequence as ***Dawood Abdul Ghafoor v. Justice of Peace and others*** (2021 PCr.LJ 1527) unequivocally held that he had no such obligation.

7. Mr. Qazi next contended that the cheques were not issued by way of security as the Petitioner suggested. They represented the primary payment obligation of Apex. The said company was its distributor and the cheques represented the price of goods which it had purchased from Respondent No.3 for further sale to the end users. Mr. Qazi vehemently denied the allegations of fraud, forgery and misrepresentation levelled against Respondent No.3. He explained that when a person delivers a duly signed inchoate instrument to another person the latter is competent to fill up the amount and the date under section 20 of the Negotiable Instruments Act, 1881. The counsel pointed out that it was not the Petitioner's case that Respondent No.3 did not supply the goods to Apex.

8. Mr. Qazi submitted that the purpose of section 22-A Cr.P.C. was to ensure immediate registration of FIR and it was a bulwark against interference in the administration of criminal justice by the influential. He argued that the offence under section 489-F PPC is complete when the cheque is dishonoured and the bank issues a memo confirming that fact. In such a situation the JOP should forthwith issue a direction for registration of criminal case and allow the law to take its own course. The parties have an opportunity to prove their respective claims during the investigation. The JOP cannot assume the role of the police and conduct any inquiry himself. The Petitioner would have the same opportunity and the issues which he has raised in response to the complaint of Respondent No.3 would be considered at the right time. Mr. Qazi lastly

contended that recordation of FIR could not be blocked merely because civil litigation was pending. A party could avail civil and criminal remedies simultaneously.

Opinion

9. The Code classifies criminal offences into two categories for certain purposes, namely cognizable and non-cognizable offences. Sections 154 and 155(1) Cr.P.C. separately prescribe the procedure for dealing with them. Section 154 is relevant for our present purpose which is reproduced below:

154. Information in cognizable cases.— Every information relating to the commission of a cognizable offence if given orally to an officer in-charge of a police station, shall be reduced to writing by him or under his direction, and be read over to the informant, and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the person giving it, and the substance thereof shall be entered in a book to be kept by such officer in such form as the Provincial Government may prescribe in this behalf.

Provided that ...

Provided further that ...

10. This Court considered section 154 Cr.P.C. in ***M. Anwar Barrister-at-Law v. The Station House Officer, Civil Lines Police Station, Lahore, and another*** (PLD 1972 Lahore 493) and explicated:

“If there is an information relating to the commission of a cognizable offence, it falls under section 154 of the Code of Criminal Procedure and a police officer is under a statutory obligation to enter it in the prescribed register. The condition precedent is simply two-fold: first, it must be an information and, secondly, it must relate to a cognizable offence on the face of it and not merely in the light of subsequent events. A police officer is bound to receive a complaint when it is preferred to him, or where the commission of an offence is reported to him orally, he is bound to take down the complaint. If he does not incorporate in the register a complaint so made, he fails to perform a statutory duty as a public servant and, therefore, renders himself to be dealt with by his superior officers for neglect of duty. Thus, it does not depend on the sweet will of a police officer who may or may not record it.”

The above statement of law was reaffirmed by a Divisional Bench of this Court in ***Saeed Ahmad and others v. Naseer Ahmad and others*** (PLD 2000 Lahore 208).

11. The expression “First Information Report” (FIR) does not appear in the Code. It is, in fact, the name given to the “information” mentioned in section 154 Cr.P.C. by Chapter XXIV of the Police Rules of

1934. In ***Muhammad Bashir v. Station House Officer, Okara Cantt. and others*** (PLD 2007 SC 539) the Hon’ble Supreme Court of Pakistan elucidated the law relating to FIR as follows:

- “(a) No authority vests with an Officer In-charge of a police station or with anyone else to refuse to record a FIR where the information conveyed discloses the commission of a cognizable offence;
- (b) No authority vests with an Officer In-charge of a police station or with anyone else to hold any inquiry into the correctness or otherwise of the information which is conveyed to the SHO for the purposes of recording of an FIR;
- (c) Any FIR registered after such an exercise, i.e. determination of the truth or falsity of the information conveyed to the SHO, would be hit by the provisions of section 162 Cr.P.C.;
- (d) Existence of a FIR is not a condition precedent for holding of an investigation nor is the same a prerequisite for the arrest of a person concerned with the commission of a cognizable offence;
- (e) The recording of an FIR does not mean that the SHO or the police officer deputed by him is obliged to investigate the case or to go through the whole length of investigation of the case mentioned therein or that any accused person nominated therein must be arrested; and
- (f) The check against lodging of false FIRs is not refusal to record such FIRs but punishment of such informants under s.182 PPC etc. which should be, if enforced, a deterrent against misuse of the provisions of s.154 Cr.P.C.”

12. There is a general complaint that the police do not register FIR when the commission of a cognizable offence is reported to them although it is their statutory obligation under section 154 Cr.P.C. In the past the people used to file petitions under Article 199 of the Constitution in the High Court for an order in the nature of *mandamus* against their inaction/refusal. The High Court would consider every case on its own facts and then either issued the writ or dismissed the petition as it deemed appropriate. The High Court’s burden increased with the passage of time so the need for legal reform arose.

13. In the Indo-Pak sub-continent the original role of the Justices of Peace under the Code was primarily to assist the police in maintaining peace and, in the event of infraction of law, to help them.¹ However, their role was subsequently enlarged and made more comprehensive through various amendments in the Code. On 21.11.2002, the Criminal Procedure (Third Amendment) Ordinance, 2002 (Federal Ordinance No. CXXXI of

¹ *Khizer Hayat and others v. Inspector-General of Police (Punjab), Lahore and others* (PLD 2005 Lahore 470).

2002)² added sub-section (6) in section 22-A Cr.P.C. and conferred additional powers on the Ex-officio Justices of Peace. The said provision reads as under:

(6) An Ex-officio Justice of Peace may issue appropriate directions to the police authorities concerned on a complaint regarding:

- (i) non-registration of criminal case;³
- (ii) transfer of investigation from one police officer to another; and
- (iii) neglect, failure or excess committed by a police authority in relation to its functions and duties.

Section 25 Cr.P.C. defines Ex-officio Justice of Peace as follows:

25. Ex-officio Justice of the Peace.– By virtue of their respective offices, the Sessions Judges and on nomination by them, the Additional sessions Judges, are Justices of the Peace within and for whole of the District of the Province in which they are serving.

14. Clause (i) of section 22-A(6) Cr.P.C. created a new forum where an aggrieved person could seek remedy against the Officer In-charge of a police station who refused registration of FIR but a huge controversy arose as to how the JOP should exercise that power or, to put it in another way, what was the nature of functions that he performed. Initially the preponderant view was that the JOP's functions were ministerial but in *Younas Abbas and others v. Additional Sessions Judge, Chakwal, and others* (PLD 2016 SC 581) a larger Bench of the Hon'ble Supreme Court ruled that they were *quasi-judicial*. The relevant excerpt is reproduced below:

“11. The duties, the Justice of Peace performs, are executive, administrative, preventive and ministerial as is evident from sub-sections (1), (2), (3), (4) and (5) of sections 22-A and 22-B of the Cr.P.C. Such duties have not been a subject-matter of controversy nor have they ever been caviled at by anybody. Controversy emerged with the insertion of subsection (6) in section 22-A and section 25 of the Cr.P.C. when the Sessions Judges and on nomination by them the Additional Sessions Judges became the Ex-officio Justices of Peace. The functions, the Ex-officio Justice of Peace performs, are not executive, administrative or ministerial inasmuch as he does not carry out, manage or deal with things mechanically. His functions as described in Clauses (i), (ii) and (iii) of sub-section (6) of section 22-A

² PLJ 2003 Fed. St. 281

³ The expression “registration of a criminal case” was alien to law, i.e. the Code and the Police Rules of 1934 prior to the insertion of section 22-A(6). However, one must assume that it means recording of FIR. [See: *Muhammad Bashir v. Station House Officer, Okara Cantt. and others* (PLD 2007 SC 539)].

Cr.P.C. are *quasi-judicial* as he entertains applications, examines the record, hears the parties, passes orders and issues directions with due application of mind. Every *lis* before him demands discretion and judgment. Functions so performed cannot be termed as executive, administrative or ministerial on any account. We thus don't agree with the ratio of the judgments rendered in the cases of *Khizar Hayat and others v. Inspector General of Police (Punjab), Lahore and others* (PLD 2005 Lahore 470) and *Muhammad Ali v. Additional I.G.* (PLD 2015 SC 753) inasmuch as it holds (sic) that the functions performed by the Ex-officio Justice of Peace are executive, administrative or ministerial.”

15. Article 189 of the Constitution ordains that the decisions of the Hon'ble Supreme Court, to the extent that they decide a question of law or enunciate a principle of law, are binding on all courts in Pakistan. And, under the law of precedents if there is a conflict in the judgments of the Supreme Court, the one delivered by larger Bench prevails.⁴ Hence, the reported cases on section 22-A(6) Cr.P.C. must be classified as *pre-* and *post- Younas Abbas judgment*. All the previous cases (which we have in plenty) stand overruled that hold that the jurisdiction of the JOP is limited to the examination of the complaint/information laid before him and should right away direct the Officer In-charge of police station to register FIR if it discloses commission of a cognizable offence. *Muhammad Bashir's* case, which I have referred above, also falls in this bucket and consequently stands overruled to this extent. Similarly, the Full Bench decision of this Court in ***Khizer Hayat and others v. Inspector-General of Police (Punjab), Lahore and others*** (PLD 2005 Lahore 470), which is one of the most important cases relating to section 22-A(6) Cr.P.C. as it examines every possible aspect thereof, also stands overruled by *Younas Abbas* case insofar as it says that the powers of the JOP are ministerial. However, its remaining part is still good law.

16. It is important to understand the significance of the holding in *Younas Abbas* case. Generally speaking, an authority is described as *quasi-judicial* when it has some trappings or attributes of a court though not all of them. According to Wade and Forsyth, “a *quasi-judicial* function is an administrative function which the law requires to be

⁴ *Fazal Muhammad Chaudhari v. Ch. Khadim Hussain and 3 others* (1997 SCMR 1368); *Sardar Muhammad Nawaz v. Mst. Firdous Begum* (2008 SCMR 404); *Chairman, State Life Insurance Corporation and others v. Hamayun Irfan and 2 others* (2010 SCMR 1495); and *National Bank of Pakistan v. Nasim Arif Abbasi and others* (2011 SCMR 446).

exercised in some respects as if it were judicial.”⁵ In **Dr. Zahid Javed v. Dr. Tahir Riaz Chaudhary and others** (PLD 2016 SC 637) the Hon’ble Supreme Court of Pakistan held: “The word ‘*quasi*’ is defined ‘as if’, ‘as though’, ‘as it were’, ‘in a manner’, ‘in a certain sense or degree’, ‘seeming’, ‘seemingly’, ‘analogous to’ and it may mean ‘resemblance’. The *quasi-judicial* power is a duty conferred by words or by implication on an officer to look into facts and to act on them in the exercise of discretion, and it lies in the judgment and discretion of an officer other than a judicial officer. A ‘*quasi-judicial* power’ is one imposed on an officer or an authority involving the exercise of discretion, judicial in its nature, in connection with, and as incidental to, the administration of matters assigned or entrusted to such officer or authority. A ‘*quasi-judicial* act’ is usually not one of a judicial tribunal, but of a public authority or officer, which is presumably the product or result of investigation, consideration, and human judgment, based on evidentiary facts of some sort in a matter within the discretionary power of such authority or officer. A *quasi-judicial* power is not necessarily judicial, but one in the discharge of which there is an element of judgment and discretion; more specifically, a power conferred or imposed on an officer or an authority involving the exercise of discretion, and as incidental to the administration of matters assigned or entrusted to such officer or authority.” The Hon’ble Supreme Court’s declaration that the JOP exercises *quasi-judicial* functions under section 22-A(6) Cr.P.C. clears up that this provision is not only independent of section 154 Cr.P.C. but radically different from it. The powers of the JOP are discretionary. He is not bound to issue a direction for registration of FIR in every case that is brought to him. On the other hand, section 154 Cr.P.C. is couched in mandatory terms and the obligation of the Officer In-charge of a police station to record FIR is absolute where the alleged offence is cognizable.

17. Interestingly, although there was a controversy regarding the precise nature of the JOP’s functions, as mentioned above, the courts always held that the powers under section 22-A(6) Cr.P.C. were

⁵ H.W.R. Wade & C.F. Forsyth, *Administrative Law*, Eleventh Edition, p.31

discretionary. In *Khizer Hayat*'s case the learned Full Bench of this Court said:

“The use of the word ‘may’ in section 22-A(6) Cr.P.C. clearly shows that the jurisdiction of an Ex-officio Justice of the Peace in that regard is discretionary in nature, and understandably so. It is unfortunate that concepts and notions of truth and justice are becoming more and more subjective in our society and the machinery of criminal law with its coercive process is increasingly being utilized by motivated persons or parties for achieving objectives which are self-serving. Thus, there is a pressing need on the part of the Ex-officio Justices of the Peace to exercise caution and restraint before issuing a direction regarding registration of a criminal case ... We may also add that in an appropriate case, depending upon the circumstances thereof, an Ex-officio Justice of the Peace may refuse to issue a direction regarding registration of a criminal case and ,may dismiss the complaint under section 22-A(6) Cr.P.C. reminding the complaining person of his alternate statutory remedies under sections 156(3) and 190 Cr.P.C.”

18. The next question is how the JOP should decide the applications under section 22-A(6) Cr.P.C. In *Namit Sharma v. Union of India*, [2013] 13 SCR 1, the Supreme Court of India observed that a *quasi-judicial* act requires that “a decision is to be given not arbitrarily or in mere discretion of the authority but according to the facts and circumstances of the case as determined upon an inquiry held by the authority after giving an opportunity to the affected parties of being heard or wherever necessary of leading evidence in support of their contention.” Mr. Ahmad submits that before *Younas Abbas* case it was the courts’ consistent view that the “proposed accused” does not have the right to be heard by the JOP when he considers an application seeking registration of a case. However, *Younas Abbas* has changed the situation. The use of the words “examines the record, hears the parties” by the Supreme Court in paragraph 11 of the judgment⁶ contemplates hearing the proposed accused and going beyond the contents of the application for registration of case to determine whether sufficient incriminating material exists to justify the direction.

19. *Audi alteram partem* (Latin phrase meaning “listen to the other side”) is one of the basic principles of natural justice – the other being *nemo judex in causa sua* (Latin for “no one should be a judge in his own cause”). The said principle postulates that no person shall be judged without a fair hearing. It is meant to give each party an opportunity to

⁶ See the excerpt reproduced in paragraph 14 of this judgment.

respond to the case set up by the other side. In ***Commissioner of Income Tax, East Pakistan v. Fazlur Rahman*** (PLD 1964 SC 410) the Hon'ble Supreme Court held that "the right to be heard is not confined to the proceedings which are judicial in form." In ***The University of Dacca through its Vice Chancellor v. Zakir Ahmad*** (PLD 1965 SC 90) it said that "in all proceedings by whomsoever held, whether judicial or administrative, the principles of natural justice have to be observed if the proceedings might result in consequences affecting the person or property or other right of the parties concerned. This rule applies even though there may be no positive words in the statute or legal document whereby the power is vested to take such proceedings, for, in such cases this requirement is to be implied into it as the minimum requirement of fairness." In ***Anisa Rehman v. PIAC and another*** (1994 SCMR 2232) the august Supreme Court ruled that there is "judicial consensus" that the maxim *audi alteram partem* is applicable to all judicial and non-judicial proceedings and that it shall be read into every statute if the right of hearing has not been expressly provided in it.⁷ However, in ***Abdul Haque Indhar and others v. Province of Sindh and 3 others*** (2000 SCMR 907) the Court held that this principle has some exceptions and one of them is that the person concerned must show that he has a vested right to defend the action. Subsequently, in ***Justice Khurshid Anwar Bhinder and others v. Federation of Pakistan and another*** (PLD 2010 SC 483) a larger Bench of the Supreme Court enumerated various other exceptions to the above rule. In ***High Flying Solar Development Pakistan Ltd. and others v. National Electric Power Regulatory Authority and others*** (2016 CLC 1805) the Islamabad High Court held that "the principles of natural justice are flexible and not rigid. The determination of the application of these principles depends on the circumstances of each case, and various factors may be taken into consideration for this purpose, such as the nature of the enquiry, the subject-matter being dealt with, whether anything unfair can be inferred if the opportunity is not afforded, whether there is no apprehension of injustice etc." Similarly, in ***Dharampal Satyapal Ltd. v.***

⁷ Also see: *Abdul Hafeez Abbasi and others v. Managing Director, PIAC, Karachi, and others* (2002 SCMR 1034); *Abdul Waheed and 4 others v. City District Government* [2014 PLC (C.S.) 820]; *Karachi City Cricket Association, Karachi v. Mujeibur Rahman, Chairman Adhoc Committee, Pakistan Cricket Board* (PLD 2003 Karachi 721).

Deputy Commissioner of Central Excise, Gauhati, and others [2015 (8) SCC 519] the Indian Supreme Court held that “every violation of a facet of natural justice may not lead to the conclusion that the order passed is always null and void. The validity of the order has to be decided on the touchstone of ‘prejudice’.”

20. The legal jurisprudence in our country is well settled that registration of FIR is not an adverse order. In this view of the matter, the Full Bench in *Khizer Hayat’s* case held that it is neither obligatory for the Officer In-charge of police station nor the JOP to afford an opportunity of hearing to the accused party before the registration of a criminal case or issuing a direction in that regard. The Hon’ble Supreme Court’s holding in *Younas Abbas* case that the JOP exercises *quasi-judicial* functions does not overrule the said principle.

21. In a nub, the JOP does not have the absolute duty to hear the accused while deciding an application under section 22-A(6) Cr.P.C. He may afford him audience only if the circumstances demand. No hard and fast rule can be laid down in that respect.

22. It may be emphasized that the JOP cannot conduct a “mini-trial” while hearing a complaint regarding non-registration of criminal case. Any mandate to hold a detailed inquiry to ascertain veracity of the allegations would militate against the very scheme of the Code. *Khizer Hayat’s* case categorically states that the proceedings before the JOP are summary in nature. He is not required to treat them as regular *lis* and pass elaborate orders having semblance of a judgment. The learned Full Bench has laid down the following guidelines for him:

“We, therefore, deem it prudent and advisable for an Ex-officio Justice of the Peace to call for comments of the Officer In-charge of the relevant police station in respect of complaints of this nature before taking any decision of his own in that regard so that he may be apprised of the reasons why the local police have not registered a criminal case in respect of the complainant’s allegations. It may well be that the complainant has been economizing with the truth and the comments of the local police may help in completing the picture and making the situation clearer for the Ex-officio Justice of the Peace facilitating him in issuing a just and correct direction, if any. If, however, the comments furnished by the Officer In-charge of the relevant police station disclose no justifiable reason for not registering a criminal case on the basis of the information supplied by the complaining person then an Ex-officio Justice of the Peace would be entirely justified in issuing a direction that a criminal case be registered and investigated. We may

clarify that it is not obligatory for the Officer In-charge of a police station or for an Ex-officio Justice of the Peace to afford an opportunity of hearing to the accused party before registration of a criminal case or before issuing a direction in that regard.”

23. Here it would be appropriate to refer to ***Mureed Hussain v. Additional Sessions Judge/Justice of Peace Jampur and 3 others*** (2014 PCr.LJ 1146) which adds that the JOP is not bound to seek report from the police when an application under section 22-A(6) Cr.P.C. is presented to him but when he does he must give reasons if he is not inclined to rely on it.

24. Let’s now turn to the case at hand. The Petitioner’s foremost contention is that the Impugned Order is without jurisdiction inasmuch as Respondent No.3 could not move a direct application under section 22-A(6) Cr.P.C. before Respondent No.4 when the SHO refused to register the FIR. According to him, it was incumbent on it to make a complaint to the higher police officers (i.e. DPO, RPO etc.) in the first instance. Admittedly, there is no such stipulation in section 22-A Cr.P.C. or any other part of the Code. The Petitioner’s contention is based on the following portion of the additional note authored by Mr. Justice Manzoor Ahmad Malik (as his Lordship was then) in *Younas Abbas* case:

“These provisions [section 22-A(6) Cr.P.C.] must be defined, structured and its contour delineated to obviate misuse by influential and unscrupulous elements. Therefore:

- (i) The ex-officio Justice of Peace, before issuance of a direction on a complaint for the non-registration of a criminal case under subsection (6)(i) of section 22-A Code of Criminal Procedure must satisfy himself that sufficient material is available on the record, such as application to the concerned SHO for registration of the criminal case and on his refusal or reluctance, complaint to the higher police officers i.e. DPO, RPO etc., to show that the aggrieved person, before invoking the powers of ex-officio Justice of the Peace, had recourse to the high-ups in the police hierarchy.”

25. The Petitioner also relies on ***Abad Ali alias Imran and another v. City Police Officer, Faisalabad and 6 others*** (PLD 2021 Lahore 274) to buttress his contention in which a learned Single Judge of this Court made the following observations:

“The apex Court in a celebrated judgment handed down in the case titled ‘*Younas Abbas and others v. Additional Sessions Judge, Chakwal and others*’ (PLD 2016 Supreme Court 581) has held that until and unless due recourse is exercised within the police hierarchy for initiation of proceedings under section 154 Cr.P.C. petition under

sections 22-A, 22-B Cr.P.C. is not maintainable. Hence, in view of guidelines given by the apex Court in the supra judgment, it is obligatory for the court functioning as Ex-officio Justice of Peace, before taking cognizance in the matter of application under sections 22-A, 22-B, Cr.P.C., to satisfy that the petitioner has already approached the concerned quarter(s) meant for redressal of his grievance i.e. filed application before SHO for registration of case, which was registered under a proper diary and the inaction by the SHO was further agitated before the higher police hierarchy (Superintendent of Police) under due receipt but with no effect.”

26. Justice Malik’s additional note reproduced above is in plain and simple language. It says that the JOP should not issue a direction for registration of criminal case mechanically. He should examine all the material placed before him carefully and make an order only when it is warranted. There is nothing in the said note which may suggest that his Lordship wanted to make complaint to senior police officers a condition precedent for invoking the JOP’s jurisdiction under section 22-A(6) Cr.P.C. In fact he could not do so because the Judges cannot legislate. They have the mandate only to interpret the law. They cannot insert or omit anything in the statute at will. Justice Malik’s note, it appears, seeks to point out other forums that are available to an aggrieved person for redress of his grievances.⁸ *Abad Ali’s* case clearly misconstrues the note.

27. The question as to what is the legal significance of the minority observations in a judgment also requires a thought. In ***Malik Muhammad Usman v. The State etc.*** [PLD 1965 (W.P.) Lahore 229] the Attorney General cited the *Dosso’s case* [PLD 1958 SC (Pak) 533] before the High Court in a reference in which the *vires* of the Frontier Crimes Regulation, 1901, was under challenge. One may recall that *Dosso’s case* was heard by a four-member Bench. Cornelius J., agreed with the resulting order of the Bench but dissented on certain points and recorded his own reasons. The Attorney General urged that the views of Cornelius J. regarding which the other learned Judges did not express dissent must be taken to have agreed by them so they were binding on the High Court. His contention was repelled. The five-member Bench of the High Court unanimously held that Cornelius J.’s remarks were “entitled to the very

⁸ See paragraph 10 of *Saeed Ahmad and others v. Naseer Ahmad and others* (PLD 2000 Lahore 208) in which a Divisional Bench of this Court held: “Refusal of the SHO, or any other police officer acting under his direction, can either be brought to the notice of the higher echelons in the police hierarchy or can be agitated through the instrument of writ.” (The Court talked about “writ” because this case was decided prior to the promulgation of Federal Ordinance No. CXXXI of 2002, supra).

highest respect” but they were not the decision of Supreme Court within the meaning of Article 63 of the Constitution of 1962 (which was parallel to Article 189 of the Constitution of 1973).

28. In *Ch. Nisar Ali Khan v. Federation of Pakistan and others* (PLD 2013 SC 568) the Hon’ble Supreme Court was called upon to consider the question as to what was the import of the suggestions and recommendations which it had made in various judgments⁹ that the Hon’ble Chief Justice of Pakistan should also be consulted in the appointment of the Chairman, National Accountability Bureau. The Supreme Court held:

“It goes without saying that a suggestion or a recommendation made by this Court in a judgment, though entitled to due respect, deference and consideration, does not travel beyond a suggestion or a recommendation and it does not by itself assume the status of law. By its nature and form a suggestion or a recommendation is simply what it is, nothing more and nothing less.”

29. Justice Malik’s note in *Younas Abbas* has to be read in the light of the principles set out in the judgments mentioned in the last two paragraphs. *Abad Ali*’s case cannot be treated as a precedent because the learned Single Judge has not considered these authorities which were binding on him.

30. The Petitioner’s next objection relates to the manner in which Respondent No.4 dealt with the application of Respondent No.3. His grievance is that vide Order dated 8.7.2021 he issued notice to him and Mrs. Tabassum Yousaf and directed Respondents No.1 & 2 (the police officials) to file their report/comments but then decided the matter without them. This objection can be sustained only if it is shown that Respondent No.4 duly applied his mind before making the said order. Here it appears that he acted mechanically so the Impugned Order cannot be annulled on the aforesaid ground. Nevertheless, there is another aspect which calls for intervention by this Court.

31. In the cases where an offence under section 489-F PPC is alleged it is normally enough for the aggrieved person to produce the following documents before the JOP for seeking a direction for

⁹ See: *Shahid Orakzai and another v. Pakistan through Secretary Law, Ministry of Law, Islamabad and another* (PLD 2011 SC 365).

registration of FIR: the original cheque, the bank's return slip and a copy of the notice under section 30 of the Negotiable Instruments Act, 1881. In the instant case, admittedly, Cheque No. 97479699 was issued by the Petitioner and drawn on his personal account while Cheque Nos. 1688258316 and CA0053594927 were drawn on Apex's corporate accounts and executed by Mrs. Tabassum Yousaf. The documents which Respondent No.3 appended with its application under section 22-A(6) Cr.P.C. reflected that the payment of two of those cheques was stopped by the drawer while the third (Cheque No. CA0053594927) was returned for the reason that the account was closed. It is true that "stop payment" or "closure of account" does not, *per se*, take the case out of the ambit of section 489-F PPC but that circumstance made it imperative for Respondent No.4 to hear the other side.

32. Having looked at the documents before me, I am of the considered opinion that the Petitioner has been prejudiced. Therefore, without touching the merits lest any observation may affect the rights of either party, I am inclined to remand the matter to Respondent No.4 for a fresh decision.

33. In view of the above, this petition is **accepted**. The application under section 22-A(6) Cr.P.C. filed by Respondent No.3 before Respondent No.4 shall be deemed to be pending. The parties shall appear before him on **07.09.2022** and submit all the documents on which they rely. Respondent No.4 shall expeditiously decide that application afresh in accordance with law after considering those documents and affording an opportunity of hearing to the learned counsel.

(Tariq Saleem Sheikh)
Judge

Announced in open Court on _____

Judge

Naeem

Approved for reporting

Judge